W08: Workshop Exercise: Surveillance & Privacy

Here is statement of "the control theory" of privacy. It attempts to answer the question:
"What is privacy?" *In other words, what is it that the right to privacy supposedly protects?*

Read the word **'claim'** as the word **'ability'**

> Privacy is the claim of individuals, groups, or institutions to determine for themselves when, how, and to what extent information about them is communicated to others.

Alan Westin (1968: 7)

Task 1: *Try stating the control theory a bit more formally (as a theory of* *<u>an individual</u>* *agent's privacy).*

An agent, S, possesses privacy if and only if _____

_____

_____

Task 2: *Try Summarizing the following argument by* ***Kevin Macnish*** *(2018: 420)*

> imagine that I leave my diary on a table in a coffee shop and return to that shop 30 minutes later to retrieve it. When I enter the shop I see a stranger with my diary on her table, a different table from the one at which I was sitting. I therefore know that she, or someone, has moved my diary; but have they read it? I have not been in control of my diary for half an hour, in which time anything might have happened to it. Again, I am likely to feel violated. There are strong feelings which accompany a loss of control such as Inness and others describe. However, I will argue, to associate these feelings with a violation of privacy is a mistake.
>
> (philosopher Julie Inness)
>
> [...]
>
> This can be illustrated through returning to the diary example. Imagine that I have returned to the coffee shop after a 30-minute interval to find my diary on a stranger's table. It is unopened. I panic for a moment, but on seeing me the stranger smiles and hands me the book. She explains that she has not opened it, but saw me leave without it and collected it to await my return. She knows how intimate her own diary is, so she respected my privacy and kept it shut, as well as making sure that no one else would be able to read it. I feel an enormous sense of relief, thank her and leave with my dignity intact.
>
> In this case, I do not think that my privacy has been lessened. When I see my diary in another's possession, I fear that my privacy has been violated, and indeed it might have been. However, as long as the diary is not actually opened and read no reduction in privacy has occurred. Note that this is true even though the diary was not under my control for 30 minutes.

(1) Argument summary (with a head start):

P1. If the control theory is true, then... _____

_____

_____

_____

_____

_____

_____

_____

_____

_____

2. Any clarification or further explanations of the premises?

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

3. Evaluation: Is Macnish's argument convincing? If not, why not?

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

References:.
- Innes, Julie (1992). *Privacy, Intimacy, and Isolation.* Oxford: Oxford University Press.
- Macnish, Kevin (2018). "Government Surveillance and Why Defining Privacy Matters in a Post-Snowden World". *Journal of Applied Philosophy* 35(2):417-432.
- *Westin, Alan (1968). Privacy and Freedom.* New York: Athenaeum.